



**DIGITAL
RIGHTS
WATCH**

Submission to the Standing Committee on Petitions

regarding the

**Inquiry into the standing orders relating to
petitions**

January 2026

Who we are

Digital Rights Watch is a charity founded in 2016 to promote and defend human rights as realised in the digital age. We stand for privacy, democracy, fairness, and freedom. Digital Rights Watch educates, campaigns, and advocates for a digital environment in which rights are respected, and connection and creativity can flourish. More information about our work is available on our website: www.digitalrightswatch.org.au

Acknowledgement of Country

Digital Rights Watch acknowledges the Traditional Owners of Country throughout Australia and their continuing connection to land and community. We acknowledge the Aboriginal and Torres Strait Islander peoples as the true custodians of this land that was never ceded and pay our respects to their cultures, and to elders past and present.

Contact

Tom Sulston | Head of Policy | tom@digitalrightswatch.org.au

Elizabeth O'Shea | Chair | lizzie@digitalrightswatch.org.au

Lucinda Thorpe | Privacy Campaigner | lcinda@digitalrightswatch.org.au

Comments on the standing orders relating to petitions

Petitions are a key way for individual Australians to participate in our democratic processes. It is essential that they remain accessible to all and not a threat to signatories' privacy.

E-petitions help people in urban, rural, and regional areas to have their voices heard, removing barriers created by geography, disability, and time constraints.¹ They broaden participation and make democratic engagement more inclusive.²

However, artificial intelligence poses a complex and evolving threat to our democracy, distorting and undermining democratic processes and norms. The mass creation of fake submissions to petitions is one example of how this harm can occur. E-petition hosts already use countermeasures to detect and limit this behaviour, such as monitoring IP addresses and other technical signals to identify suspicious activity.³

Importantly, the law already addresses the most serious forms of petition fraud. If AI were to flood a petition, this could amount to interference with a democratic process. In such cases, the misuse of systems and deceptive conduct could attract penalties under the *Criminal Code Act 1995*.⁴ Any reforms must therefore not restate what is already illegal, or to introduce disproportionately-difficult controls that undermine accessibility.

Assessing a petition's credibility must respect our privacy. While it is important that petitions submitted to parliament reflect genuine public concern, verification

¹ Procedure and Privileges Committee (2023) *Report 5: Electronic petitions*, Parliament of Western Australia, p. 4. Available at: [https://www.parliament.wa.gov.au/Parliament/commit.nsf/\(Report+Lookup+by+Com+ID\)/658DEB361064B38C48258A61000E9F20/\\$file/PPC+Report+5+e-petitions+-+Final.pdf](https://www.parliament.wa.gov.au/Parliament/commit.nsf/(Report+Lookup+by+Com+ID)/658DEB361064B38C48258A61000E9F20/$file/PPC+Report+5+e-petitions+-+Final.pdf)

² Rosenberger, S., Seisl, B., Stadlmair, J. and Dalpra, E. (2022) 'What are petitions good for? Institutional design and democratic functions', *Parliamentary Affairs*, 75(1), pp. 217–237. <https://academic.oup.com/pa/article/75/1/217/6010644>

³ House of Representatives Standing Committee on Petitions (2009) *Report on e-petitioning: Chapter 4 Privacy and security concerns*, Parliament of Australia. Available at: https://www.aph.gov.au/Parliamentary_Business/Committees/House_of_representatives_Committees?url=petitions/epetitioning/report/chapter4.htm

⁴ Commonwealth of Australia (1995) *Criminal Code Act 1995* (Cth), s 135.1.

mechanisms must not introduce disproportionate privacy risks to signatories. If platforms are required to collect biometric data, government-issued identification, or credit card information, they become high-value targets for data breaches.

Democratic participation should not come at the cost of personal security. If Australians are asked to put their privacy at risk when signing petitions, the resultant chilling effect will dissuade them from expressing their opinions openly, weakening our democracy for everyone.